

INTA Practice Guides Report

Trademark Cancellations Guide

Chile

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks (The Madrid Protocol came into force in Chile on July 4, 2022.); This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation. Chilean trademark law establishes only procedural rules regarding cancellations. No substantive rules or definitions have been established.
- Cancellation actions can be filed online at the following URL: <http://www.inapi.cl/portal/institucional/600/w3-channel.html>. However, before or after the filing of the cancellation action (a term is granted by the Registrar), it is necessary to register a power of attorney at the special Registry at the Trademark Office. The registration of the PoA is also made online.

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner (For a nullity to proceed, the legal defect must exist at the time of registration.); the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith. All of the above mentioned grounds are contained in the list of prohibitions of registration in the Chilean Trademark law.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright (There have been some precedents in this matter. The mark shall be related to the kind of word(s) covered by copyright.); the mark is a company name (only where it appears that the trademark applicant is trying to accrue to his favor the fame or goodwill of the company); the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention) (if this permits one to assume bad faith on the part of the applicant).

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings. Requirement of use of registered trademarks was introduced in 2005, but applies only to new trademarks registered since the law came into force, and to renewals obtained after that date.
- In relation to cancellation for non-use, "use" is defined as: The law states that the use should be real and effective
- The definition of "use" provided above is derived from statute, regulation or administrative rule: Article 27 bis A. -- A declaration of trademark registration shall proceed if any of the following circumstances occur: a) If, after five years from the date of registration, the trademark has not been put to real and effective use within the national territory by the owner or by a third party with his consent, to distinguish one or more of the products and/or services for which it has been granted; or if such use has been suspended uninterruptedly for the same period.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor, as stated in the law.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years from date of registration or any consecutive five-year period thereafter.
- The consequences of use being interrupted are: If the use is interrupted for five years or longer, any interested party may ask for the mark's expiration ("caducidad"), which is not the same as cancellation (nullity), which depends on the mark having been granted registration although it should not have been registered.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).
- The advantages of filing an action based on multiple grounds are as follows: Actions based on multiple grounds are common. If more than one is raised, the plaintiff's position is stronger. It is also important that the grounds for cancellation are the same established by law as the grounds prohibiting registration. Consequently, the same arguments are used in oppositions. On many occasions, multiple arguments are applicable.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings. The "case frame" is contained in the initial cancellation action, once

notified to the defendant.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following administrative body: Cancellation proceedings are decided in the first instance by the Instituto Nacional de Propiedad Industrial (INAPI) (National Institute of Industrial Property). In the second instance, decisions of INAPI are brought before the Tribunal de Propiedad Industrial (TPI) (Industrial Property Court), a specialized court.
- The administrative body/bodies listed above is/are not independent of the trademark registry. The body that judges a cancellation action and decides it is in First Instance and is the same that granted the registration. In Second Instance, it is an independent court.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation. A prior owner or user has standing if the cancellation is based on prior registration, well-known foreign registration, prior use, in some specific cases, etc. Anybody has standing to file if the cancellation is based on genericness, descriptiveness, commonly used expression, conflict with geographical indication, etc., based "on the public interest."
- For cancellations based on absolute grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required.
- For cancellations based on non-use grounds, the following parties have standing: any interested person. Legal interest is required. The law states that expiration for non-use (different from nullity), may not be declared ex parte, and must be initiated by someone who has a legitimate interest.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who believes he is being damaged by the registration; someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use (Generally speaking, rights do not arise from prior use unless the application is filed in bad faith (for example, to benefit from the fame or goodwill obtained through the prior use), and if there is a possibility of confusion among consumers.); someone who owns a company name that conflicts with the mark that is the subject of the trademark application (if bad faith exists); someone who is of the opinion that the mark was not registrable.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may never apply jointly for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant. But, depending on the merits, the prosecution of the cancellation action may not stop the prosecution of the infringement case. Further, the bodies deciding infringement and cancellation actions are different. Infringement actions are heard by civil and/or criminal courts, whereas cancellation actions are decided in the first instance by the administrative body and on appeal by a specialized court.

V. Representation — A. Qualifications

- The applicant is always required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The representative must be an attorney.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- To validate the power of attorney, the following notarization/legalization requirements must be met in cancellation proceedings: If the power of attorney is granted in Chile, notarization of the signature is not required. If it is granted abroad, the signature should be legalized by the competent Chilean Consulate or Apostilled.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings is the same, regardless of the grounds for cancellation. The deadline is: For both absolute and relative grounds, the deadline is five years from registration, but if the registration was obtained in bad faith, there is no deadline (Art. 6bis (3) Paris Convention).

VI. Commencement — C. Statute of Limitations

- The following statute of limitations or acquiescence provisions will prevent cancellation, regardless of the grounds for cancellation: five years, from registration date, with the exception of registrations obtained in bad faith (Art. 6bis (3) Paris Convention), to which no statute of limitations applies.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible only if the cancellation is based on the following grounds: absolute grounds; relative grounds; non-use grounds; other: It is possible to ask for cancellation regarding only one class of a multiclass registration, and even for some specific goods or services included in the original coverage.

- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: Depending on the activity of the parties, in the first instance, proceedings may take between 18 and 24 months; in the second instance, they may take between 8 and 10 months.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: in the first instance, 6 to 12 months; in the second instance, either immediately (not very common) or from two weeks to two months after oral pleadings.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees (Each party pays its own attorney fees. If an appeal is filed, the appellant pays a tax, which is refundable if the appeal is upheld.); administrative costs relating to power of attorney; administrative costs relating to legalization and/or notarization.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation. There are no official fees, except for the appeal tax.
- If an application for cancellation is based on multiple grounds, no additional official fees are due. There are no official fees, except the appeal tax.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: the power of attorney, but only if it is granted abroad; the signature should be authorized by a notary public and then legalized by the corresponding Chilean Consulate or Apostilled. The following documents must be legalized in cancellation proceedings, regardless of the grounds for cancellation: Power of attorney, if granted abroad, should be Apostilled, or legalized by the Chilean Consul.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings are the same, regardless of the grounds for cancellation and are as follows: The documentation, other than the power of attorney, may be filed at a later stage, during the probatory term.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests"). A party may request exhibition of documents to official authorities but not to the other party. Chilean law does not contain rules on discovery.

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions"). No witnesses are permitted under the trademark law.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: The burden of proof always corresponds to the party alleging an argument.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory. The cancellation action originates a file, in which all the allegations and defenses made in writing by both parties are included, along with all of the documents filed by them. Only in the second instance, during the hearing, may oral allegations or pleadings be made.
- The deadline for the applicant to submit written arguments is determined by statute, rule or regulation and is: in the first instance, just before the INAPI issues a resolution stating "cítese a las partes a oír sentencia" (calling to the parties to hear the decision), which means that the discussion period in the case has finished and from then on the INAPI will prepare the decision; in the second instance, until the hearing. The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: in the first instance, just before the INAPI issues a resolution stating "cítese a las partes a oír sentencia" (calling to the parties to hear the decision), which means that the discussion period in the case has finished and from then on the INAPI will prepare the decision; in the second instance, until the hearing.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings at second instance, before the TPI, if either party files an appeal against an adverse first instance decision.
- The determination of whether oral hearings will take place is made by: The law provides that, in second instance cases, oral pleadings should take place.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: all types of evidence, including documents, photographs, videos, etc.; witnesses are not permitted.
- Evidence must be submitted to: The Trademark Office (INAPI), in the first instance; the Second Instance Industrial Property Court, in the second instance.
- Evidence must be submitted by the following deadline: during the probatory term of 30 working days opened by the INAPI. It may be extended, if a party requests it, for another 30 working days. Documents may be filed until the end of the discussion period, in the first instance, and until the oral pleadings, in the second instance.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: all types of evidence, including documents, photographs, videos, etc.; witnesses are not permitted.
- Evidence must be submitted to: the Trademark Office (INAPI), in the first instance; the Second Instance Industrial Property Court, in the second instance.
- Evidence must be submitted by the following deadline: During the probatory term of 30 working days opened by the INAPI. It may be extended, if a party requests it, for another 30 working days.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: For expiration for non-use, the registered owner shall provide evidence of use. Any type of evidence is allowed, except for witnesses.
- Evidence must be submitted to: the Trademark Office.
- Evidence must be submitted by the following deadline: within the probatory term of 30 working days.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based. This includes evidence of real and effective use or evidence of impossibility to use due to any reasonable cause.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence are the same, regardless of the grounds on which the cancellation proceedings are based. Extension is possible for: Extension term for filing any kind of evidence (witnesses are not allowed) is granted as required before expiration of the original term, basing the petition on a reasonable argument (for example, the party is domiciled abroad).
- No official fees are payable to obtain an extension for submitting evidence.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: Documents may be filed until the INAPI issues the decision stating that the discussion period is closed.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional.
- Evidence in reply must be submitted by the following deadline: during the probatory term of 30 working days, with the exception of documents that may be filed within the discussion stage, i.e., before the INAPI issues the resolution calling the parties to await the issuance of the final first instance decision. In the second instance, documents may be filed until the oral hearings.
- The following extensions of time for the respondent's submissions are available: The probatory term may be extended for another 30 working days.
- No official fees are payable to obtain extensions.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; packaging; labels; price lists; advertisements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated by: evidence that may be proven was originated prior to the filing of the action, such as invoices, bills of lading, market surveys, etc.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark.
- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness cannot be a valid defense in cancellation proceedings based on absolute grounds. Acquired distinctiveness may be alleged only for defending an application for registration that is being opposed on grounds of being generic or descriptive. The determination of whether the grounds of cancellation proceed is determined relative to the time of registration. There is no known precedent for the situation of a registration for a trademark that was generic at the time of the application that afterward acquired distinctiveness.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: based on reasonable arguments, such as force majeure.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is not entitled to recover attorney fees, regardless of the grounds for cancellation.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: when final, and when it is recorded against the cancelled registration, which is eliminated.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation

application, regardless of the grounds for cancellation.

- Withdrawal of a cancellation application does not require the approval of the court, other judicial tribunal or administrative body; termination is automatic. It requires only the acceptance of the defendant.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: Each party has to pay its own costs and expenses, unless otherwise agreed.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: 15 working days, counted from notification of the first instance decision.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: the specialized Second Instance Industrial Property Court (Tribunal de Propiedad Industrial).

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: approximately US \$180.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision. The appeal should be filed by an attorney, representing the appellant.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award. No monetary awards are granted in cancellation actions.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Supreme Court of Justice, through a "cassation action." Details regarding the deadlines and fees for further appeal are as follows: The term for filing the cassation action is 15 days from notification of the second instance decision. There are no fees.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, regardless of the grounds on which the cancellation proceedings were brought, if an

applicant is successful in obtaining cancellation, the legal consequence is that: the mark is considered as having been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: They will be considered as invalid, without effect, as the registration matter of the assignment no longer exists.
- The consequences for past licenses if a mark is cancelled are: They will be terminated at the date of the definitive cancellation of the registration. There is no license if the registration does not exist.
- The consequences for past contracts if a mark is cancelled are: Depending on the contract, and on rules of general law, the assignee and the licensee may have action for compensation damages against the first registrant of the cancelled registration.

XXI. Notification to TM Office — A. Notification to TM Office

- There is no requirement to formally notify the Trademark Office following a decision to cancel a mark; cancellation is automatic regardless of the grounds on which the proceedings were brought in the first instance, as the decision was issued by the Trademark Office (INAPI). If the final decision is the one issued by the second instance Industrial Property Court (TPI), with respect to an appeal, or by the Supreme Court of Justice, with respect to a cassation action, said courts will send the material file to the Trademark Office, in order to allow it to proceed with the material cancellation of the registration.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: only by a particular party to the action. Only the plaintiff can refile an application for the trademark on which the cancellation was based if the grounds for cancellation were that the defendant appropriated, in bad faith, a trademark identical or confusingly similar to the one created and registered abroad by the plaintiff for the same or related goods or services, provided the trademark is famous, or that the plaintiff appropriated, in bad faith, a non-registered trademark in Chile. In such case, the plaintiff has a priority term of 90 working days to file for the trademark in his own name. If this is not done, anyone may file for the trademark, even the defeated defendant.
- The time limits for refile following the cancellation of a mark are the same, regardless of the grounds on which the proceedings were brought: In the situation mentioned in the preceding answer, the plaintiff has a priority of 90 working days to file the application.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: The law does not provide a definition.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are

defined as: not defined in the law.

- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

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